

manifestly unfair or one-sided.” (*Baltazar v. Forever 21, Inc.*, (2016) 62. Cal.4th 1237, 1244.) In other words, because procedural unconscionability has been found, the analysis turns on consideration of the substantive unconscionability prong.

The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

Here, the terms of the arbitration agreement are not so harsh, unreasonable, or unfairly one sided as to render the agreement unconscionable. The arbitration agreement applies to all parties, provides for a neutral arbitrator that must follow the law, provides adequate discovery, provides types of relief otherwise available in this court, and Defendant is to pay for costs unique to arbitration.

The court also finds that pursuant to the terms of the arbitration agreement the rules set forth in the California Arbitration Act apply. (See Section G, Arbitration Procedure, ¶ 2.)

This action is stayed pending arbitration.

An arbitration status hearing is set for Tuesday, January 5, 2027, at 1:30 p.m. in Courtroom 12.

Defendant, as prevailing party, is ordered to prepare an order consistent with this order, to be filed with this court within five (5) days.

26CV-00169 Valley First Credit Union vs Delores Gomes

Motion for an Order Deeming Admitted All Responses to Request for Admissions

Plaintiff’s motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Defendant has failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Plaintiff’s Requests for Admission, Set One, are deemed admitted, unless Defendant serves, before the hearing, a proposed response to the request for admissions, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Unless the court receives notice that Defendant has served, before the hearing, proposed responses to the requests for admission, the court will sign the order lodged with the court on May 5, 2026.

Monetary sanctions are GRANTED. Monetary sanctions in the amount of \$455 are to be paid to Plaintiff within thirty (30) days of this court’s order.

Case Management Conference

Appearance required.